

was terminated by City Manager Shasa Curl. Defendant asserts the City Manager authored the Plaintiff's termination letter, identified herself as the decision-maker in deposition and verified discovery responses on the reasons for the Plaintiff's termination. She does not believe she discussed terminating Plaintiff with the Mayor. Under the city charter, the city manager's administrative responsibilities include, without limitation, appointing and removing all department heads and employees of the city. Defendant alleges that the City Council has no authority to make personnel decisions involving department heads, including the fire chief.

Plaintiffs assertions that Mayor Martinez possesses direct factual information on material issues in this case that cannot be obtained from any other sources are speculative. For example Plaintiffs assert that Mayor Martinez presided over and attended city council meetings where Plaintiff's leadership and position as Fire Chief were at issue. Attendance at a public meeting means by definition there were other people there who could report on what the Mayor said if anything about the Plaintiff's continued employment. Mere attendance at, even "presiding over" a city council meeting, especially where the City Council does not have the authority to fire a department head, does not amount to the Mayor having direct personal factual information on issues material to the Plaintiff's termination. Even communicating "employment related opinions" about Plaintiff to the city manager – especially where the Plaintiffs have the communication in question referencing "last night's presentation at city council" does not mean that the Mayor has direct personal factual information on material issues that cannot be obtained from another source.

In contrast to the vague allegations of Plaintiff about the Mayor, the city manager has stated in deposition that she was the decision maker to fire Plaintiff, and can (or has already been) deposed to the extent of the involvement or influence of the Mayor. This undermines the Plaintiff's contention that material information even if possessed by the Mayor could not be obtained from any other source. Material Information about the fire chief's termination, even if the Mayor had direct personal knowledge of such, would be irrelevant if it were not communicated to the decision maker, the city manager. Thus Plaintiff's cannot meet their burden.

The motion to compel the deposition of Mayor Martinez is **denied**.

17. 9:01 AM CASE NUMBER: C23-03011

CASE NAME: ANGEL MONTOYA VS. CITY OF RICHMOND

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER ANSWERS AND ATTENDANCE AT DEPOSITION OF SHASA CURL

FILED BY: MONTOYA, ANGEL

TENTATIVE RULING:

Plaintiff's Motion to Compel Further Answers is **denied**.

Question 1: denied as to "why." Witness testified she did order Plaintiff to attend it. Witness justifiably took issue with the "defend the ADR contact." Therefore the form of the question "assumes facts not in evidence," because she cannot give an explanation for something she took issue with doing in the first place.

Question 2: denied. Witness answered she gave an order to attend it, but justifiably took issue with the word "defend." Burden is on propounder of question to ask a question that is intelligible.

Question 3: denied. Same reasoning as Question 2.

Question 4: denied. Assumes facts. Witness took issue with the "defend" verbiage.

Question 5: denied. Witness answered she does not recall.

The Plaintiff's request for appointment of discovery referee is denied at this time.

Pursuant to Section 2025.480(j) of the Code of Civil Procedure, the court awards sanctions against Plaintiff's counsel, Steven Harvey in favor of Defense in the amount of \$3,087.50. The sanctions must be paid within 15 calendar days of service of notice of entry of this order.

18. 9:01 AM CASE NUMBER: C25-01314

CASE NAME: GABRIEL SUTTON VS. JOSEPH BALLESTEROS

*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUESTS FOR